

Multiple Choice (10 marks)

1. Judge took judicial notice of some facts at the beginning of the trial. Which of the following is not an appropriate kind of fact for judicial notice?
 - (a) Indisputable facts.
 - (b) Facts that have been asserted by individual political organizations.
 - (c) Facts recognized to be true by common knowledge.
 - (d) Facts capable of scientific verification.
2. Seller has a contract that specifies a delivery point. What kind of a contract is this?
 - (a) F.A.S. Contract
 - (b) Destination contract
 - (c) Shipment contract
 - (d) F.O.B. Contract
3. In order to have an irrevocable offer under the Uniform Commercial Code, the offer must
 - (a) Be made by a merchant to a merchant.
 - (b) Be contained in a signed writing which gives assurance that the offer will be held open.
 - (c) State the period of time for which it is irrevocable.
 - (d) Not be contained in a form supplied by the offeror.
4. If a regulation does amount to a taking, then what must the government do?
 - (a) Pay just compensation for the property
 - (b) Terminate the regulation and pay damages that occurred while regulation was in effect
 - (c) Pay double damages if not addressed in 30 days.
 - (d) a or b
5. Which is the hierarchy of U.S. Law?
 - (a) Executive agreements, U.S. Constitution, treaties and federal statutes, state law
 - (b) U.S constitution, treaties and federal statutes, executive agreements, state law
 - (c) Treaties and federal statutes, US Constitution, executive agreements, state law
 - (d) U.S constitution, executive agreements, treaties and federal statutes, state law

True / False (10 marks)

Answer True or False

6. True or False: Compensatory damages are intended to restore the nonbreaching party to the position they would have been in if full performance had occurred.
7. True or False: The name 'Child Finder Company' is appropriate for a corporation aimed at locating missing children.
8. True or False: The Rule in Shelley's Case allows a contingent remainder to become a fee simple if the grantor's heirs are named.
9. True or False: Discharging a contract for frustration of purpose requires that the supervening event was not foreseeable at the time of contract formation.
10. True or False: A discriminatory effect alone is sufficient to demonstrate that the government intended to discriminate in a legal classification.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the implications of the President's power to appoint various officials with the Senate's advice and consent, analyzing its effects on the balance of power within the federal government.
12. Discuss the essential elements of slander in the context of constitutional law, and analyze the implications of the statement that slander per se does not require publication.

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